

COMMERCIAL TRUCKING MOTOR TRUCK CARGO



Insured Name	ALJACK GROUP INC
Address	12440 INDEPENDENCE CT APT E 31 PRINCESS ANNE, MD 21853
Policy Term	From: Nov 14, 2025 To: Nov 14, 2026

Issued By:
Cover Whale Insurance Solutions Inc.
CA License No 0M87896
November 6, 2025 11:44:28 EST (Eastern Standard Time)

www.CoverWhale.com



POLICY # CUS09126092-01

ALJACK GROUP INC

Issued By:
Cover Whale Insurance Solutions Inc.
CA License No 0M87896
November 6, 2025 11:44:28 EST (Eastern Standard Time)

www.CoverWhale.com

Maryland Surplus Lines Notice

This insurance is issued by a nonadmitted insurer not under the jurisdiction of the Maryland Insurance Commissioner.

The insurer does not possess a certificate of authority from the commissioner of insurance to engage in the insurance business in Maryland.

CLAIMS NOTIFICATION

All claims must be reported to the below:

The Littleton Group
A Davies Company
PO Box 163627
Austin, TX 78716
512-733-5152
cwlclaims@us.davies-group.com

MOTOR TRUCK CARGO DECLARATIONS

ITEM ONE

Company Name:	Canopus US Insurance, Inc.
Issued By:	Cover Whale Insurance Solutions Inc.
Named Insured:	ALJACK GROUP INC
Form of Business:	LLC
Mailing Address:	12440 INDEPENDENCE CT APT E 31 PRINCESS ANNE, MD 21853

Policy Period	
From:	Nov 14, 202512:01am Local Time
To:	Nov 14, 2026 At 12:01 AM Standard Time at your mailing address shown above
Previous Policy Number:	N/A

In return for the payment of the premium, and subject to all the terms of this Policy, we agree with you to provide the insurance as stated in this Policy.

Premium Shown Is Payable At Inception:	\$ 806.65
Audit Period (if applicable):	N/A – Only Scheduled Vehicles, Trailer and Drivers are covered _____

Endorsements Attached To This Policy		
Form Title	Form Number	Edition Date
Cover Whale Policy Jacket (Cargo)	CWIS Cover MTC	05 22

SURPLUS FORM MD	CWIS SURPLUS MD	09 01
CLAIMS NOTIFICATION	CUS CA 199 L	11 24
COMMERCIAL LINES COMMON POLICY DECLARATIONS - MTC	CUS CA 100 MTC	10 23
Motor Truck Cargo Declarations	CW MTC CA DS 21	09 21
MTC DEC TAXES, FEES, TOTAL COST	CW MTC DEC SUM	06 22
PREMIUM CALCULATION CHANGES	CUS CA 102	10 23
AUTO GENERAL CLAUSES ENDORSEMENT	CUS CA 103	10 23
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DRIVER SCHEDULE - INCLUDED AND EXCLUDED - MTC	CUS CA 104 MTC	10 23
UNDECLARED DRIVER EXCLUSION	CUS CA 105	10 23
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GENERIC COMPLAINTS NOTICE	CUS CO 109	05 24
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ITEM ONE (Cont'd)

Countersignature Of Authorized Representative	
Name:	Daniel Abrahamsen
Title:	Chief Executive Officer
Signature:	 Daniel Abrahamsen
Date:	Nov 14, 2025 12:01am Local Time

1. **DRIVER SCHEDULE – Only the following individuals are covered operators under this policy.**

Driver Name(s)	See below – only scheduled drivers are covered
Reporting	N/A - Only scheduled drivers are covered

Operator Name	DOB	License Number	Hire Date	Covered (Y/N)
MAHAMOUD ALI MUSA ALJACK	1988-08-17	A422575048643 (MD)	2023-11-01	N

Operator Name	DOB	License Number	Hire Date	Covered (Y/N)
ELSIR IDRIS ELTIGANI	1979-04-06	MD10272722061 (MD)	2023-11-01	Y

Operator Name	DOB	License Number	Hire Date	Covered (Y/N)
HUSSEIN MUSTAFA MOHAMED ELHAJ	1979-03-02	MD10272811319 (MD)	2023-11-01	Y

The following exclusion is added to the policy: This insurance does not apply to any loss involving a **covered vehicle** while being driven or operated by or under the care, custody or control of any driver excluded above (as indicated with a “N” for “Not Covered”).

2. **VEHICLE SCHEDULE – Only the following vehicles are “covered autos” under this policy.**

Vehicle	Only Scheduled Vehicles, Trailer and Drivers are covered
Reporting	N/A – Only Scheduled Vehicles, Trailer and Drivers are covered

Covered Auto Number:	1					
Town And State Where The Covered Auto Will Be Principally Garaged:						
Per Schedule on File with Cover Whale Insurance Solutions Inc.						
Covered Auto Description						
Year:	2017	Model:	CASCADIA	Trade Name:	FREIGHTLINER	
Body Type:	Tractor/Truck			Serial Number(s):		
Vehicle Identification Number (VIN):		1FUJGLDR1HLJA7695				
Classification						
Original Cost New	Radius Of Operation	Business Use s=service r=retail c=commercial	Size GVWR, GCW Or Vehicle Seating Capacity	Age Group	Secondary Rating Classification	Code
N/A	Unlimited	C	Tractor/Truck	N/A	N/A	N/A
Loss Payee Name and Address: Per Schedule on File with Cover Whale Insurance Solutions Inc.						

1. TOTAL PREMIUMS – Premiums subject to reporting and audit provisions.

Coverage	Deposit Premium
Motor Truck Cargo	\$806.65
Trailer Interchange	\$900
Estimated Total Premium	\$806.65
TAXES, FEES & TOTAL COST	
Policy Fee:	\$100.00
Broker/Service Fee:	\$0.00
Underwriting Fee:	\$50.00
Surplus Lines Taxes:	\$28.70
Stamping Fee:	\$0.00
SLAS Transaction Fee:	\$0.00
Surcharge Fee:	0.00
Total Premium Billed at Inception:	\$985.35

Coverage Part	Taxes Fees & Total Cost
Motor Truck Cargo	806.65
Policy Fee	100.00
Safety Fee	50.00
Broker Fee	0.00
Surplus Lines Tax	28.70
Regulatory Fee (if applicable)	0.00
Stamping Fee	0.00
Maintenance Assessment Fee	0.00
Windstorm Fee (if applicable)	\$0.00
SLAS Transaction Fee (if applicable)	0.00
Fire Marshal Tax (if applicable)	\$0
TOTAL	\$985.35

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PREMIUM CALCULATION CHANGES

1. Minimum Earned Premium

This policy is subject to a 25% minimum earned premium. However, if we cancel the policy for any reason, other than for non-payment of premium, the minimum earned premium will not apply.

2. Commercial General Liability Coverage Part

If this policy includes the Commercial Coverage Liability coverage, form CUS CA 402 Commercial General Liability Coverage is revised as follows.

SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS, Paragraph **5.b. Premium Audit** is deleted and replaced by the following.

- b.** Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period, we will compute the earned premium for that period and, if it exceeds the deposit premium, we will send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill.

The deposit premium is fully earned at the end of the audit period. No return premium will be due the insured if the earned premium is less than the deposit premium.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AUTO GENERAL CLAUSES ENDORSEMENT

The following exclusions are added to the policy and supercede any provisions to the contrary.

1. Seepage and Pollution Exclusion

We will not pay for:

- a. Any loss, damage, cost or expense;
- b. Any increase in loss, cost or expense; or
- c. Any loss, damage, cost, expense, fine or penalty which is incurred, sustained or imposed by order, direction, instruction or request of, or by any agreement with, any court, government agency or any public, civil or military authority, or threat thereof

which arises from any kind of seepage or any kind of pollution and/or contamination, or threat thereof, whether or not caused by or resulting from a peril insured, or from steps or measure taken in connection with the avoidance, prevention, abatement, mitigation, remediation, clean-up or removal of such seepage or pollution and/or contamination or threat thereof.

As used in this policy, any kind of seepage or any kind of pollution and/or contamination includes, but is not limited to:

- a. Seepage of, or pollution and/or contamination by, anything, including but not limited to:
 - (1) Any material designated as a hazardous substance by the United States Environmental Protection Agency;
 - (2) Any material designated as a hazardous material by the United States Department of Transportation; or
 - (3) Any material designated as a toxic substance by the Canadian Environmental Protection Act; or
 - (4) Any substance designated or defined as toxic, dangerous, hazardous or deleterious to persons or the environment under any other federal state, provincial, municipal or other law, ordinance or regulation.
- b. The presence, existence or release of anything which endangers or threatens to endanger the health, safety or welfare of persons or the environment.

2. Biological or Chemical Materials Exclusion

We will not pay for any loss, damage, cost or expense directly or indirectly caused by, resulting from or in connection with the actual or threatened malicious use of any pathogenic or poisonous biological or chemical materials regardless of any other cause or event contributing concurrently or in any sequence to the loss.

3. Radioactive Contamination Exclusion

We will not pay for any loss, damage, cost or expense directly or indirectly caused by, resulting from or in connection with any nuclear reaction, nuclear radiation or radioactive contamination.

However, if such nuclear reaction, nuclear radiation or radioactive contamination causes fire damage to Covered Property and fire is a Covered Cause of Loss, this exclusion does not apply to the claim for resulting fire damage.

4. Terrorism Exclusion

We will not pay for any loss, damage, cost or expense directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause of event contributing concurrently or in any sequence to the loss. Loss or damage includes the cost of any action taken in controlling, preventing, or suppressing an act of terrorism.

For purposes of this endorsement, an act of terrorism means an act including, but not limited to, the use of force or violence or the threat thereof, of any person(s) or group(s), whether acting alone or on behalf of, or in connection with any organization(s), or government(s) and committed for political, religious, ideological or similar purposes.

This exclusion does not apply to any "insured loss" directly resulting from any "act of terrorism" as defined in the Terrorism Risk Insurance Act of 2002 as amended (TRIA) where such coverage was purchased and included in the policy.

5. Cyber Loss Exclusion

We will not pay for any Cyber Loss. Cyber Loss means any actual, alleged or potential loss, damage, cost, expense, fine or penalty or any other amount including, but not limited to, damage to property, loss of business income or consequential loss, directly or indirectly caused by, contributed by, resulting from, arising out of or in connection with the following regardless of any other cause or event contributing concurrently or in any sequence to the loss and whether or not the loss results in widespread damage or affects a substantial area:

- a. Access to, processing, use or operation of any Computer System or Computer Network;
- b. Loss of ability to use or operate, any Computer System, Computer Network or Data, whether partial or total;
- c. The reduction in functionality, malfunction, deterioration, corruption, alteration, repair, replacement, restoration or reproduction of any Data, Computer System or Computer Network or Data, including but not limited to the corruption of Data, the failure to prevent transmission of malicious codes, and the failure to prevent an attack to the Computer System, Computer Network, and Data;
- d. Access to, processing, transmission, storage or use of any Data;
- e. Loss of ability to access, process, transmit, store or use any Data, whether partial or total;
- f. Any other error, failure, malfunction, omission or accident or series of related errors, failures, malfunctions, omissions or accidents, in respect of any Computer System, Computer Network or Data, including but not limited to the corruption of Data, the failure to prevent transmission of malicious codes, and the failure to prevent an attack to the Computer System, Computer Network, and Data;
- g. Any unauthorized, malicious or criminal act, threat or hoax or series of related unauthorized, malicious or criminal acts, threats or hoaxes, regardless of time and place, relating to paragraphs (a) through (f) above, including but not limited to the unauthorized disclosure or acquisition of Data, computer virus or extortion; or
- h. Any action taken in controlling, preventing, suppressing or remediating anything relating to paragraphs (a) through (g) above.

As used in this exclusion:

- a. Computer System means any computer, hardware, software, application, process, code, program, information technology, communications system, server, cloud, microchip, integrated circuit microcontroller, or electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device) owned or operated by the insured or by any other party. This includes any similar system, non-computer equipment or any configuration of the

aforementioned, and any associated input, output or data storage device or system, networking equipment or back up facility.

- b.** Computer Network means a group of Computer Systems and other electronic devices or network facilities connected via a form of communications technology, including, but not limited to, the internet, intranet, website, and virtual private networks (VPN), allowing the networked computing devices to exchange Data.
- c.** Data means information used, accessed, processed, transmitted or stored by a Computer System including but not limited to facts, concepts and information converted to a form useable for communications, interpretation or processing by a Computer System, and files, programs, applications, operating systems, e-mail, software and other coded instructions for the processing and manipulation of such information or the direction and manipulation of a Computer System.

This exclusion applies to all forms and endorsements including, but not limited to, forms and endorsements that cover damage to autos, cargo, buildings, personal property, business income, extra expense or action of civil authority.

The terms of this exclusion, or the inapplicability of this exclusion to a particular loss, do not serve to create coverage for any loss that would otherwise not be covered under this policy.

This endorsement supersedes and, if in conflict with any other wording in the Policy or any endorsement thereto having a bearing on Cyber Loss, Data or Data Processing Media, replaces that wording.

SERVICE OF SUIT CLAUSE

This Service of Suit Clause will not be read to conflict with or override the obligations of the parties to arbitrate their disputes as provided for in any Arbitration provision within this Policy.

In any cause of action arising under this policy, or certificate, cover note, or other confirmation of this insurance issued we will, at the request of the Insured (or Reinsured), submit to the jurisdiction of a Court of competent jurisdiction within the United States. Nothing in this Clause constitutes or should be understood to constitute a waiver of rights to commence an action in any Court of competent jurisdiction in the United States, to remove an action to a United States District Court, or to seek a transfer of a case to another Court as permitted by the laws of the United States or of any State in the United States.

The below named is authorized and directed to accept service of process on behalf of Canopius US Insurance, Inc. in any such suit.

COGENCY GLOBAL INC.

ALABAMA 2 North Jackson Street, Suite 605 Montgomery, AL 36104	ALASKA P.O. Box 33735 Juneau, AK 99803	ARIZONA Cogency Global Inc. 300 W. Clarendon Ave. Ste 240 Phoenix, AZ 85013
ARKANSAS 1215 Twin Lakes Drive Little Rock, AR 72205	CALIFORNIA 1325 J Street, Ste 1550 Sacramento, CA 95814	COLORADO 600 17th St., Suite 1450S Denver, CO 80202
CONNECTICUT 29 West High Street East Hampton, CT 06424	DELAWARE 850 New Burton Road, Suite 201 Dover, DE 19904	DISTRICT OF COLUMBIA 1025 Connecticut Ave. N.W., Suite 712 Washington, DC 20036
FLORIDA 115 North Calhoun Street, Suite 4 Tallahassee, FL 32301	GEORGIA 900 Old Roswell Lakes Pkwy, Suite 310 Roswell, GA 30076	HAWAII 1188 Bishop Street, Suite 2212 Honolulu, HI 96813
IDAHO Shoreline Drive, Suite 100 Boise, ID 83702	ILLINOIS Second Street, Suite 404 Springfield, IL 62704	INDIANA 9221 Crawfordsville Road Indianapolis, IN 46234
IOWA 100 Court Ave., Suite 201 Des Moines, IA 50309	KANSAS 2101 S.W. 21st Street Topeka, KS 66604	LOUISIANA 828 Lane Allen Road, Suite 219 Lexington, KY 40504
MAINE 75 York Street, Suite 2 Portland, ME 04101	MARYLAND 1519 York Road Lutherville, MD 21093	MASSACHUSETTS 45 School Street, Suite 202 Boston, MA 02108
MICHIGAN 186 N. Main Street, 2nd Floor, Suite One Plymouth, MI 48170	MINNESOTA 525 Park Street, Suite 247 St Paul, MN 55103	MISSISSIPPI 248 East Capitol Street, Ste 840 Jackson, MS 39201
MISSOURI 406 N Main St., Suite B	MONTANA 40 West 14th St. Suite 2B	NEBRASKA 5601 S. 59th Street, Suite C

Rolla, MO 65401	Helena, MT 59601	Lincoln, NE 68516
NEVADA 321 W. Winnie Lane #104 Carson City, NV 89703	NEW HAMPSHIRE 63 Pleasant Street Concord, NH 03301	NEW JERSEY 316 Berrhill Drive Williamstown, NJ 08094
NEW MEXICO 1012 Marquez Place, Suite 106B Santa Fe, NM 87505	NEW YORK 122 East 42nd Street, 18th Floor New York, NY 10168	NORTH CAROLINA 212 South Tryon Street, Suite 1000 Charlotte, NC 28281
NORTH DAKOTA 120 West Sweet Avenue, Suite 9 Bismarck, ND 58504	OHIO 3958-D Brown Park Dr. Hilliard, OH 43026	OKLAHOMA 15205 Traditions Lake Parkway Edmond, OK 73013
OREGON 698 12th Street SE, Suite 200 Salem, OR 97301	PENNSYLVANIA 600 North 2nd Street Harrisburg, PA 17101	PUERTO RICO Agustin Stahl, Carr. 174 A-10 Bayamon, PR, 00956
RHODE ISLAND 222 Jefferson Boulevard Warwick, RI 02888	SOUTH CAROLINA 2 Office Park Court, Suite 103 Columbia, SC 29223	SOUTH DAKOTA 326 N. Madison Ave Pierre, SD 57501
TENNESSEE 992 Davidson Drive, Suite B Nashville, TN 37205	TEXAS 1601 Elm Street, Suite 4360 Dallas, TX 75201	UTAH 2005 East 2700 South, Ste 200 Salt Lake City, UT 84109
VERMONT 209 Route 35 Athens, VT 05143	VIRGINIA 250 Browns Hill Court Midlothian, VA 23114	WASHINGTON 1780 Barnes Blvd. SW Tumwater, WA 98512-0410
WEST VIRGINIA 128 Capitol Street Charleston, WV 25301	WISCONSIN 100 Wilburn Rd. Suite 100 Sun Prairie, WI 53590	WYOMING 1912 Capitol Avenue, Suite 500 Cheyenne, WY 82001

Pursuant to any state, territory or district of the United States which makes provision therefore, we designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose to accept service in any action, suit or proceeding instituted by or on behalf of the insured and designate COGENCY GLOBAL INC. as the entity to which said officer is authorized to mail such process.

THE LANGUAGE OF THIS ENDORSEMENT ABOVE IS MODIFIED IN EACH APPLICABLE STATE AS SET FORTH BELOW TO COMPLY WITH CERTAIN STATE SPECIFIC REQUIREMENTS AND DISCLOSURES:

ARIZONA

By issuing or delivering a surplus lines policy through a surplus lines broker in Arizona, we are conclusively deemed to have irrevocably appointed the Arizona Director of Insurance as our agent for acceptance of service of all legal process issued in Arizona in any action or proceeding under or arising out of such policy, and service of the process on the director is lawful personal service on us.

CALIFORNIA

We may be sued upon any cause of action arising in California under any surplus line insurance contract made by us, or any evidence of such insurance issued or delivered by the surplus line broker, pursuant to the procedures set forth in Cal. Ins. Code §§ 1610 to 1620,

inclusive. Further, by assuming surplus line insurance, we subject ourselves to Chapter 6 of the California Insurance Code.

IDAHO

We shall be sued upon any cause of action arising in Idaho under any contract issued by us as a surplus line contract pursuant to Idaho surplus lines law, in the district court of the county in which the cause of action arose. Service of legal process against us may be made in any such action by service upon the Director of the Department of Insurance of Idaho as provided in Idaho Code Ann. § 41-334(1). The director shall forthwith mail a copy of the process served to the person designated in Section II of this Endorsement, by prepaid registered mail with return receipt requested. We have thirty (30) days from the date of service upon the director within which to plead, answer, or otherwise defend the action. Upon service of process upon the director in accordance with Idaho Code Ann. § 41-1231 the court shall be deemed to have jurisdiction in personam over us.

ILLINOIS

We hereby designate the Illinois Director of Insurance and his successors in office as our true and lawful attorney, upon whom may be served all lawful process in any action, suit or proceeding arising out of any insurance we write delivered pursuant to 215 Ill. Comp. Stat. § 5/445.

IOWA

We may be sued upon a cause of action arising in Iowa under a surplus lines insurance policy or contract placed by us or upon evidence of insurance placed by us and issued or delivered in Iowa by a surplus lines insurance producer.

KENTUCKY

We shall be sued upon any cause of action arising in Kentucky under any contract issued by us as a surplus lines contract pursuant to subtitle 10 of the Kentucky Insurance Code, in the Circuit Court of the county in which the cause of action arose. Any service of legal process against us may be made in any such action by service upon the Secretary of State of the State of Kentucky as provided in Ky. Rev. Stat. Ann. § 304.3- 230(5).

LOUISIANA

We shall be sued upon any cause of action arising in Louisiana under any contract issued by us as a surplus lines contract pursuant to Chapter 2, Part 1, Subpart O of the Louisiana Insurance Code, in the district court of the parish in which the cause of action arose. Service of legal process against us may be made in any such action by service upon the Secretary of State of the State of Louisiana or some other person in his office whom he may designate during his absence. The secretary of state shall forthwith mail the documents of process served, or a true copy thereof, to the person designated in Section II of this Endorsement by registered or certified mail or by commercial courier as defined in La. Rev. Stat. Ann. tit. § 13:3204(D). We have forty (40) days from the date of service upon the secretary of state within which to plead, answer, or otherwise defend the action. Upon service of process upon the secretary of state in accordance with this provision, the court shall be deemed to have jurisdiction in personam over us.

MARYLAND

We hereby appoint the Maryland Insurance Commissioner as agent for the acceptance of service of process in Maryland.

MICHIGAN

We hereby appoint the Michigan Insurance Commissioner as our resident agent for the purposes of service of process in Michigan.

PENNSYLVANIA

We may be sued upon any cause of action arising in the Commonwealth of Pennsylvania under any surplus lines insurance contract made by us or evidence of such insurance issued or delivered by a surplus lines licensee. Any service of process on us shall be made pursuant to the procedures provided by 42 Pa.C.S. Ch. 53 Subch. B (relating to interstate and international procedure). By accepting surplus lines insurance we are deemed thereby to have subjected ourselves to accepting service of process under 42 Pa.C.S. Ch. 53 Subch. B.

PUERTO RICO

In any action brought in Puerto Rico under an insurance contract issued as a surplus line pursuant to Title 26, Subtitle 1, Chapter 10, by us, duplicate copies of legal process shall be served upon the Commissioner of Insurance of the Commonwealth of Puerto Rico. The Commissioner shall forthwith mail one copy of the process so served to the person designated in Section II of this Endorsement, by registered mail with return receipt requested. Upon service of process upon the Commissioner and such mailing of process, the court shall be deemed to have jurisdiction in personam over us. We shall have forty-five days after such date of mailing within which to plead, answer, or otherwise defend the action. At time of such service of process the plaintiff shall pay to the Commissioner three dollars, taxable as costs in the action.

SOUTH DAKOTA

Any cause of action against us arising in South Dakota on a surplus line contract shall be brought in the circuit court for the county in which the cause of action arose. Service of legal process against us may be made in any such action by service upon the South Dakota director of the Division of Insurance as provided in S.D. Codified Laws § 58-6-39. The director shall forthwith mail a copy of the process served to the person designated in Section II of this Endorsement, by prepaid registered or certified mail with return receipt requested. We shall have thirty days from the date of service upon the director within which to plead, answer, or otherwise defend the action. Upon service of process upon the director in accordance with S.D. Codified Laws § 58-6-38, the court shall be deemed to have jurisdiction in personam over us. By issuing a surplus lines policy, we are deemed thereby to have authorized service of process against us in the manner and to the effect as provided in S.D. Codified Laws § 58-6-37.

TENNESSEE

We may be sued upon any cause of action arising in Tennessee under any surplus lines insurance contract issued by us or certificate, cover note or other confirmation of the insurance issued by the surplus lines agent, pursuant to the same procedure as is provided for unauthorized insurers in Title 56, Chapter 2, Part 6 and Tenn. Code Ann. § 56-7-105(b) of the Tennessee Insurance Law. By assuming a surplus lines insurance risk pursuant to Title 56, Chapter 14, Part 1, we are deemed to have subjected ourselves to the requirements of Tenn. Code Ann. § 56-14-112.

TEXAS

We may be sued on any cause of action arising in Texas under any surplus lines insurance contract issued by us or under any certificate, cover note, or other confirmation of that insurance issued by the surplus lines agent, under the same procedure as is provided for unauthorized insurers in Sections 7.1404, 7.1410, and 7.1411 of Title 28 of the Texas Administrative Code (relating to Service of Process Procedure for Domestic Insurers Approved To Operate under the Insurance Code, Article 1.28, Foreign and Alien Insurance Companies, Risk Retention Groups, Purchasing Groups, Third Party Administrators, Unauthorized Persons or Insurers, Organizations Formed under the Insurance Code, Article 3.71, and Surplus Lines Insurers; Service of Process on Commissioner on Behalf of Unauthorized Persons or Insurers; and Service of Process, Notice, Order, or Pleading on Secretary of State on Behalf of Unauthorized Persons and Insurers). By assuming a surplus

lines risk under Chapter 981 of the Texas Insurance Code, we are subject to Tex. Ins. Code Ann. § 804.106. Any act of engaging in the business of insurance by us, an eligible surplus lines insurer, constitutes the irrevocable appointment by us of the Texas Secretary of State as agent for service of process arising from our engagement of the business of insurance in Texas, other than service of process for an action or proceeding by the department or state, and signifies our agreement that service under Tex. Ins. Code Ann. § 804.106 has the same effect as personal service on us or our successor in interest. The plaintiff shall supply the address provided in Section II of this Endorsement in any citation served under Tex. Ins. Code Ann. § 804.106. Service of process as set forth in this Endorsement is in addition to any other method provided by law for service of process on a surplus lines insurer, including the method provided by Chapter 804, Subchapter C of the Texas Insurance Code.

WASHINGTON

For any cause of action arising in Washington under any contract issued as a surplus line contract under Chapter 48.15, we must be sued in the superior court of the county in which the cause of action arose. By issuing a policy under Chapter 48.15, we have authorized service of process against us in the manner prescribed under Wash. Rev. Code § 48.02.200. We hereby designate the Washington Commissioner of Insurance as the person upon whom such service of process may be made.

PRIVACY POLICY STATEMENT

CANOPIUS US INSURANCE INC.

Canopus US Insurance, Inc. wants you to know how we protect the confidentiality of your non-public personal information as well as how and why we use and disclose the information we have about you. The following describes our policies and practices for securing the privacy of our current and former customers. We may amend our privacy policy from time to time consistent with applicable privacy laws.

INFORMATION WE COLLECT

The non-public personal information that we collect includes, but is not limited to:

- Information contained in applications or other forms that you and/or your authorized representatives submit to us, such as name, address and social security number.
- Information we obtain from you and others in connection with insurance coverage we issue to you, including but not limited to, information about your transactions with our affiliates or other third parties, such as financial account balances and payment history.
- Information we receive from insurance support organizations and consumer or other reporting agencies related to your credit-worthiness or credit history. Information obtained from a report prepared by an insurance support organization may be retained by the insurance support organization and disclosed to other persons.

REASONS WE CAN DISCLOSE YOUR PERSONAL INFORMATION

We do not disclose personal information about current or former customers to anyone, except as permitted by law. We do not share information we collect from consumer or credit reporting agencies with our affiliates or others without your consent unless such disclosure is permitted by law.

We may disclose some or all of the personal information (other than information we receive from consumer or other credit reporting agencies) that we collect about you to companies that perform services or functions on our behalf or to other financial institutions with whom we have entered into joint agreements for the marketing of financial products or services. Our contractual agreements prohibit these third parties from disclosing or using your personal information other than to carry out the purposes for which we disclosed the information. We may disclose your personal information to affiliates, including insurance companies, or third parties, including insurance salespeople or insurance providers, when it is necessary to provide products and services you request or as otherwise permitted under applicable law. We may disclose information when the law requires or permits us to do so such as law enforcement and state regulatory agencies.

CONFIDENTIALITY AND SECURITY

We maintain physical, electronic and administrative safeguards designed to protect your personal information from unauthorized access. We limit access to your personal information to those employees and/or third parties who need such access in connection with providing products or services to you or for other legitimate business purposes.

RIGHT TO ACCESS OR CORRECT YOUR PERSONAL INFORMATION

As required by applicable law, we will afford you the right to:

1. Access your personal information;
2. Find out to whom your personal information has been disclosed; and
3. Request correction or deletion of your personal information.

Where permitted by law, we may charge a reasonable fee to cover the costs incurred in responding to such request.

All requests must be made in writing to the following address:

ATTN: Privacy Compliance
Canopus US Insurance, Inc.
200 S. Wacker Drive, Suite 950
Chicago IL 60606-5829

CONTACTING US

If you have any questions about this privacy notice or would like to learn more about how we protect your privacy, please contact the agent or broker who handled this insurance. We can provide a more detailed statement of our privacy practices upon written request.

SANCTION LIMITATION AND EXCLUSION CLAUSE

Canopus US Insurance Inc. shall not be deemed to provide cover and Canopus US Insurance Inc. shall not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose Canopus US Insurance Inc. to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the United States of America.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION OF CERTAIN COMPUTER-RELATED LOSSES

This endorsement modifies insurance provided under the following:

COMMERCIAL INLAND MARINE COVERAGE PART
COMMERCIAL PROPERTY COVERAGE PART
CRIME AND FIDELITY COVERAGE PART
STANDARD PROPERTY POLICY

- A.** We will not pay for loss ("loss") or damage caused directly or indirectly by the following. Such loss ("loss") or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss ("loss") or damage.
- 1.** The failure, malfunction or inadequacy of:
 - a.** Any of the following, whether belonging to any insured or to others:
 - (1)** Computer hardware, including micro-processors;
 - (2)** Computer application software;
 - (3)** Computer operating systems and related software;
 - (4)** Computer networks;
 - (5)** Microprocessors (computer chips) not part of any computer system; or
 - (6)** Any other computerized or electronic equipment or components; or
 - b.** Any other products, and any services, data or functions that directly or indirectly use or rely upon, in any manner, any of the items listed in Paragraph **A.1.a.** of this endorsement;

due to the inability to correctly recognize, process, distinguish, interpret or accept one or more dates or times. An example is the inability of computer software to recognize the year 2000.
 - 2.** Any advice, consultation, design, evaluation, inspection, installation, maintenance, repair, replacement or supervision provided or done by you or for you to determine, rectify or test for, any potential or actual problems described in Paragraph **A.1.** of this endorsement.
- B.** If an excluded Cause of Loss as described in Paragraph **A.** of this endorsement results:
- 1.** In a Covered Cause of Loss under the Crime and Fidelity Coverage Part, the Commercial Inland Marine Coverage Part or the Standard Property Policy; or
 - 2.** Under the Commercial Property Coverage Part:
 - a.** In a "Specified Cause of Loss", or in elevator collision resulting from mechanical breakdown, under the Causes of Loss – Special Form; or
 - b.** In a Covered Cause of Loss under the Causes Of Loss – Basic Form or the Causes Of Loss – Broad Form;

we will pay only for the loss ("loss") or damage caused by such "Specified Cause of Loss", elevator collision, or Covered Cause of Loss.
- C.** We will not pay for repair, replacement or modification of any items in Paragraphs **A.1.a.** and **A.1.b.** of this endorsement to correct any deficiencies or change any features.

DRIVER SCHEDULE – INCLUDED AND EXCLUDED

Policy No: CUS09126092-01

Effective Date: Nov 14, 2025 12:01am Local Time

Named Insured: ALJACK GROUP INC

This endorsement modifies insurance provided under the following:

CUS CA 202 Auto Physical Damage Coverage Form

CUS CA 302 Motor Truck Cargo Coverage Form

CUS CA 502 Non-Trucking Liability Coverage Form

DRIVER SCHEDULE

Name of Driver	DOB	Driver's License Number and State	Date Of Hire	Included Y/N
MAHAMOUD ALI MUSA ALJACK	1988-08-17	A422575048643 MD	2023-11-01	N

Name of Driver	DOB	Driver's License Number and State	Date Of Hire	Included Y/N
ELSIR IDRIS ELTIGANI	1979-04-06	MD10272722061 MD	2023-11-01	Y

Name of Driver	DOB	Driver's License Number and State	Date Of Hire	Included Y/N
HUSSEIN MUSTAFA MOHAMED ELHAJ	1979-03-02	MD10272811319 MD	2023-11-01	Y

1. The following exclusion is added to the policy:

This insurance does not apply to any loss involving a **covered vehicle** while being driven or operated by or under the care, custody or control of any driver excluded above.

All other policy terms and conditions remain unchanged.

UNDECLARED DRIVER EXCLUSION

This endorsement modifies insurance provided under the following:

CUS CA 202 Auto Physical Damage Coverage Form
CUS CA 302 Motor Truck Cargo Coverage Form
CUS CA 502 Non-Trucking Liability Coverage Form

1. The following definitions apply to this endorsement:

- a. **Undeclared driver** means any driver not listed on the Driver Schedule.

2. The following condition is added to the policy:

It is a condition precedent for coverage under the policy that **you** declare all drivers to the company at or before the inception date of the policy or immediately upon hire.

Failure to immediately declare the driver will result in the denial of coverage for a loss to a **covered vehicle** which they are driving or operating or is under their care, custody or control.

3. The following exclusion is added to the policy:

This insurance does not apply to any loss involving a **covered vehicle** while being driven or operated by or under the care, custody or control of any **undeclared driver**.

All other policy terms and conditions remain unchanged.

1. Virus or Bacteria Exclusion

The following exclusion is added:

- a.** We will not pay for loss, damage, cost or expense caused directly or indirectly by or resulting from:
 - (1)** Any virus, parasite, bacterium or other microorganism, or any variation thereof, whether deemed living or not, that induces or is capable of inducing physical distress, emotional distress, illness, disease or other damage to human or animal health or welfare; or
 - (2)** Any fear or threat, whether real or perceived, of any such virus, bacterium or other microorganism.

Such loss or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss.

For purposes of this endorsement, loss or damage includes, but is not limited to, any claim, cost or expense to prevent, clean-up, detoxify, remove, monitor or test for any virus, bacterium or other microorganism.

- b.** This exclusion applies to all forms and endorsements.
- c.** With respect to any loss or damage subject to the exclusion in Paragraph **a.**, such exclusion supersedes any exclusion relating to "pollutants".
- d.** The terms of this exclusion, or the inapplicability of this exclusion to a particular loss, do not serve to create coverage for any loss that would otherwise not be covered under this policy.

COMMERCIAL INLAND MARINE CONDITIONS

The following conditions apply in addition to the Common Policy Conditions and applicable Additional Conditions in Commercial Inland Marine Coverage Forms:

LOSS CONDITIONS

A. Abandonment

There can be no abandonment of any property to us.

B. Appraisal

If we and you disagree on the value of the property or the amount of loss, either may make written demand for an appraisal of the loss. In this event, each party will select a competent and impartial appraiser. The two appraisers will select an umpire. If they cannot agree, either may request that selection be made by a judge of a court having jurisdiction. The appraisers will state separately the value of the property and amount of loss. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

1. Pay its chosen appraiser; and
2. Bear the other expenses of the appraisal and umpire equally.

If there is an appraisal, we will still retain our right to deny the claim.

C. Duties In The Event Of Loss

You must see that the following are done in the event of loss or damage to Covered Property:

1. Notify the police if a law may have been broken.
2. Give us prompt notice of the loss or damage. Include a description of the property involved.
3. As soon as possible, give us a description of how, when and where the loss or damage occurred.
4. Take all reasonable steps to protect the Covered Property from further damage, and keep a record of your expenses necessary to protect the Covered Property, for consideration in the settlement of the claim. This will not increase the Limit of Insurance. However, we will not pay for any subsequent loss or damage resulting from a cause of loss that is not a Covered Cause of Loss. Also, if feasible, set the damaged property aside and in the best possible order for examination.

5. You will not, except at your own cost, voluntarily make a payment, assume any obligation, or incur any expense without our consent.

6. As often as may be reasonably required, permit us to inspect the property proving the loss or damage and examine your books and records.

Also permit us to take samples of damaged and undamaged property for inspection, testing and analysis, and permit us to make copies from your books and records.

7. We may examine any insured under oath, while not in the presence of any other insured and at such times as may be reasonably required, about any matter relating to this insurance or the claim, including an insured's books and records. In the event of an examination, an insured's answers must be signed.

8. Send us a signed, sworn proof of loss containing the information we request to settle the claim. You must do this within 60 days after our request. We will supply you with the necessary forms.

9. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or suit.

10. Cooperate with us in the investigation or settlement of the claim.

D. Insurance Under Two Or More Coverages

If two or more of this policy's coverages apply to the same loss or damage, we will not pay more than the actual amount of the loss or damage.

E. Loss Payment

1. We will give notice of our intentions within 30 days after we receive the sworn proof of loss.
2. We will not pay you more than your financial interest in the Covered Property.
3. We may adjust losses with the owners of lost or damaged property if other than you. If we pay the owners, such payments will satisfy your claim against us for the owners' property. We will not pay the owners more than their financial interest in the Covered Property.
4. We may elect to defend you against suits arising from claims of owners of property. We will do this at our expense.

5. We will pay for covered loss or damage within 30 days after we receive the sworn proof of loss if you have complied with all the terms of this Coverage Part and:

- a. We have reached agreement with you on the amount of the loss; or
- b. An appraisal award has been made.

6. We will not be liable for any part of a loss that has been paid or made good by others.

F. Other Insurance

1. You may have other insurance subject to the same plan, terms, conditions and provisions as the insurance under this Coverage Part. If you do, we will pay our share of the covered loss or damage. Our share is the proportion that the applicable Limit of Insurance under this Coverage Part bears to the Limits of Insurance of all insurance covering on the same basis.
2. If there is other insurance covering the same loss or damage, other than that described in 1. above, we will pay only for the amount of covered loss or damage in excess of the amount due from that other insurance, whether you can collect on it or not. But we will not pay more than the applicable Limit of Insurance.

G. Pair, Sets Or Parts

1. Pair Or Set

In case of loss or damage to any part of a pair or set we may:

- a. Repair or replace any part to restore the pair or set to its value before the loss or damage; or
- b. Pay the difference between the value of the pair or set before and after the loss or damage.

2. Parts

In case of loss or damage to any part of Covered Property consisting of several parts when complete, we will only pay for the value of the lost or damaged part.

H. Recovered Property

If either you or we recover any property after loss settlement, that party must give the other prompt notice. At your option, the property will be returned to you. You must then return to us the amount we paid to you for the property. We will pay recovery expenses and the expenses to repair the recovered property, subject to the Limit of Insurance.

I. Reinstatement Of Limit After Loss

The Limit of Insurance will not be reduced by the payment of any claim, except for total loss or damage of a scheduled item, in which event we will refund the unearned premium on that item.

J. Transfer Of Rights Of Recovery Against Others To Us

If any person or organization to or for whom we make payment under this Coverage Part has rights to recover damages from another, those rights are transferred to us to the extent of our payment. That person or organization must do everything necessary to secure our rights and must do nothing after loss to impair them. But you may waive your rights against another party in writing:

1. Prior to a loss to your Covered Property.
2. After a loss to your Covered Property only if, at time of loss, that party is one of the following:
 - a. Someone insured by this insurance; or
 - b. A business firm:
 - (1) Owned or controlled by you; or
 - (2) That owns or controls you.

This will not restrict your insurance.

GENERAL CONDITIONS

A. Concealment, Misrepresentation Or Fraud

This Coverage Part is void in any case of fraud, intentional concealment or misrepresentation of a material fact, by you or any other insured, at any time, concerning:

1. This Coverage Part;
2. The Covered Property;
3. Your interest in the Covered Property; or
4. A claim under this Coverage Part.

B. Control Of Property

Any act or neglect of any person other than you beyond your direction or control will not affect this insurance.

The breach of any condition of this Coverage Part at any one or more locations will not affect coverage at any location where, at the time of loss or damage, the breach of condition does not exist.

C. Legal Action Against Us

No one may bring a legal action against us under this Coverage Part unless:

1. There has been full compliance with all the terms of this Coverage Part; and
2. The action is brought within 2 years after you first have knowledge of the direct loss or damage.

D. No Benefit To Bailee

No person or organization, other than you, having custody of Covered Property will benefit from this insurance.

E. Policy Period, Coverage Territory

We cover loss or damage commencing:

1. During the policy period shown in the Declarations; and
2. Within the coverage territory.

F. Valuation

The value of property will be the least of the following amounts:

1. The actual cash value of that property;

2. The cost of reasonably restoring that property to its condition immediately before loss or damage; or
3. The cost of replacing that property with substantially identical property.

In the event of loss or damage, the value of property will be determined as of the time of loss or damage.

COMMON POLICY CONDITIONS

All Coverage Parts included in this policy are subject to the following conditions.

A. Cancellation

1. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.
2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - b. 30 days before the effective date of cancellation if we cancel for any other reason.
3. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
4. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.

B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. Examination Of Your Books And Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

D. Inspections And Surveys

1. We have the right to:
 - a. Make inspections and surveys at any time;
 - b. Give you reports on the conditions we find; and
 - c. Recommend changes.
2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
 - a. Are safe or healthful; or
 - b. Comply with laws, regulations, codes or standards.
3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.
4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

E. Premiums

The first Named Insured shown in the Declarations:

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

F. Transfer Of Your Rights And Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual named insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

MOTOR TRUCK CARGO DECLARATION FORM

A) COVERED VEHICLE LIMIT	\$ 100,000	Any one Covered Vehicle
B) LOSS LIMIT	\$ 100,000	Any one Occurrence
C) DEDUCTIBLE	\$ 1,000	Each and every Occurrence, except as stated in the Optional Endorsements

DECLARATIONS

THIS POLICY COVERS:

Loss or damage to Covered Property while in or on a Covered Vehicle, as described below, subject to the terms, conditions and exclusions of the Motor Truck Cargo Coverage Form.

DESCRIPTION OF COVERED VEHICLE(S)

Vehicle No.	Description				
	Year	Make	Model	Vehicle Identification Number (VIN)	Limit of Liability

1	2017	FREIGHTL INER	CASCADIA	1FUJGLDR1HLJA7695	\$
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Trailer No.	Description				
	Year	Make	Model	Vehicle Identification Number (VIN)	Limit of Liability

OPTIONAL COVERAGES SCHEDULE

Coverage Number	Coverage Name	Included/Not Included	Limit	Deductible	
1	Refrigeration Breakdown Coverage	Per Schedule	Matching Policy Limit, if Included	Matching Policy Deductible, if Included	
2	Riggers Coverage	Not Included	Excluded	Excluded	
3	Unattended Covered Vehicle Coverage	Not Included			
4	Earned Freight Coverage	Included			\$5,000
5	Debris Removal Coverage	Included			\$2,500
6*	L.T.L. Coverage (72 Hour Off Covered Vehicle Cover)	Per Terminal Schedule Below (7)			SEE BELOW (6)
7*	In Full Premium Coverage	Not Included			SEE BELOW (7)

6* L.T.L. COVERAGE (72 HOUR OFF COVERED VEHICLE COVER)

Terminal: Limit: \$

Terminal: Limit: \$

Terminal: Limit: \$

7* IN FULL PREMIUM COVERAGE

Specified vehicles, vehicle identification numbers:

MOTOR TRUCK CARGO DECLARATION FORM

CUS CA 301 09 24

Target Interest Inclusion Endorsement

In consideration of the additional premium charged, the interests shown in paragraph **A.** below are removed from section **2. Property Not Covered.**

With respect to any loss resulting from theft of the interests shown in paragraph **A.**, the limit of insurance shown in paragraph **B** below applies.

With respect to any loss resulting from theft of the interests shown in paragraph **A.**, the deductible shown in paragraph **C** below applies.

If **Coverage Number 4** (Unattended Covered Vehicle Coverage) is included on the **OPTIONAL COVERAGES SCHEDULE**, the Unattended Covered Vehicle Coverage does not apply to any interests shown in paragraph **A** below.

A. Interests included:

- Alcohol, Beer
- Wine Electronics
- Furs Garments (not high fashion)
- Non-Ferrous Metal
- Bulk & Bagged Nuts
- Pharmaceuticals
- Seafood (unless canned)
- Tobacco

B. Limit any one loss for theft of these interests: \$25,000

C. Deductible any one loss for theft of these interests: \$2,500

The most **we** will pay for any loss resulting from theft of the interests show in paragraph **A** is the limit of insurance shown in paragraph **B** less the deductible shown in paragraph **C**. For example, if the paragraph **B** limit of insurance is \$25,000 and the paragraph **C** deductible is \$5,000, the most **we** will pay for loss resulting from theft is \$20,000, regardless of the actual loss amount.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AUTO GENERAL CLAUSES ENDORSEMENT

The following exclusions are added to the policy and supercede any provisions to the contrary.

1. Seepage and Pollution Exclusion

We will not pay for:

- a.** Any loss, damage, cost or expense;
- b.** Any increase in loss, cost or expense; or
- c.** Any loss, damage, cost, expense, fine or penalty which is incurred, sustained or imposed by order, direction, instruction or request of, or by any agreement with, any court, government agency or any public, civil or military authority, or threat thereof

which arises from any kind of seepage or any kind of pollution and/or contamination, or threat thereof, whether or not caused by or resulting from a peril insured, or from steps or measure taken in connection with the avoidance, prevention, abatement, mitigation, remediation, clean-up or removal of such seepage or pollution and/or contamination or threat thereof.

As used in this policy, any kind of seepage or any kind of pollution and/or contamination includes, but is not limited to:

- a.** Seepage of, or pollution and/or contamination by, anything, including but not limited to:
 - (1)** Any material designated as a hazardous substance by the United States Environmental Protection Agency;
 - (2)** Any material designated as a hazardous material by the United States Department of Transportation; or
 - (3)** Any material designated as a toxic substance by the Canadian Environmental Protection Act; or
 - (4)** Any substance designated or defined as toxic, dangerous, hazardous or deleterious to persons or the environment under any other federal state, provincial, municipal or other law, ordinance or regulation.
- b.** The presence, existence or release of anything which endangers or threatens to endanger the health, safety or welfare of persons or the environment.

2. Biological or Chemical Materials Exclusion

We will not pay for any loss, damage, cost or expense directly or indirectly caused by, resulting from or in connection with the actual or threatened malicious use of any pathogenic or poisonous biological or chemical materials regardless of any other cause or event contributing concurrently or in any sequence to the loss.

3. Radioactive Contamination Exclusion

We will not pay for any loss, damage, cost or expense directly or indirectly caused by, resulting from or in connection with any nuclear reaction, nuclear radiation or radioactive contamination.

However, if such nuclear reaction, nuclear radiation or radioactive contamination causes fire damage to Covered Property and fire is a Covered Cause of Loss, this exclusion does not apply to the claim for resulting fire damage.

4. Terrorism Exclusion

We will not pay for any loss, damage, cost or expense directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause of event contributing concurrently or in any sequence to the loss. Loss or damage includes the cost of any action taken in controlling, preventing, or suppressing an act of terrorism.

For purposes of this endorsement, an act of terrorism means an act including, but not limited to, the use of force or violence or the threat thereof, of any person(s) or group(s), whether acting alone or on behalf of, or in connection with any organization(s), or government(s) and committed for political, religious, ideological or similar purposes.

This exclusion does not apply to any "insured loss" directly resulting from any "act of terrorism" as defined in the Terrorism Risk Insurance Act of 2002 as amended (TRIA) where such coverage was purchased and included in the policy.

5. Cyber Loss Exclusion

We will not pay for any Cyber Loss. Cyber Loss means any actual, alleged or potential loss, damage, cost, expense, fine or penalty or any other amount including, but not limited to, damage to property, loss of business income or consequential loss, directly or indirectly caused by, contributed by, resulting from, arising out of or in connection with the following regardless of any other cause or event contributing concurrently or in any sequence to the loss and whether or not the loss results in widespread damage or affects a substantial area:

- a.** Access to, processing, use or operation of any Computer System or Computer Network;
- b.** Loss of ability to use or operate, any Computer System, Computer Network or Data, whether partial or total;
- c.** The reduction in functionality, malfunction, deterioration, corruption, alteration, repair, replacement, restoration or reproduction of any Data, Computer System or Computer Network or Data, including but not limited to the corruption of Data, the failure to prevent transmission of malicious codes, and the failure to prevent an attack to the Computer System, Computer Network, and Data;
- d.** Access to, processing, transmission, storage or use of any Data;
- e.** Loss of ability to access, process, transmit, store or use any Data, whether partial or total;
- f.** Any other error, failure, malfunction, omission or accident or series of related errors, failures, malfunctions, omissions or accidents, in respect of any Computer System, Computer Network or Data, including but not limited to the corruption of Data, the failure to prevent transmission of malicious codes, and the failure to prevent an attack to the Computer System, Computer Network, and Data;
- g.** Any unauthorized, malicious or criminal act, threat or hoax or series of related unauthorized, malicious or criminal acts, threats or hoaxes, regardless of time and place, relating to paragraphs **(a)** through **(f)** above, including but not limited to the unauthorized disclosure or acquisition of Data, computer virus or extortion; or
- h.** Any action taken in controlling, preventing, suppressing or remediating anything relating to paragraphs **(a)** through **(g)** above.

As used in this exclusion:

- a.** Computer System means any computer, hardware, software, application, process, code, program, information technology, communications system, server, cloud, microchip, integrated circuit microcontroller, or electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device) owned or operated by the insured or by any other party. This includes any similar system, non-computer equipment or any configuration of the

aforementioned, and any associated input, output or data storage device or system, networking equipment or back up facility.

- b.** Computer Network means a group of Computer Systems and other electronic devices or network facilities connected via a form of communications technology, including, but not limited to, the internet, intranet, website, and virtual private networks (VPN), allowing the networked computing devices to exchange Data.
- c.** Data means information used, accessed, processed, transmitted or stored by a Computer System including but not limited to facts, concepts and information converted to a form useable for communications, interpretation or processing by a Computer System, and files, programs, applications, operating systems, e-mail, software and other coded instructions for the processing and manipulation of such information or the direction and manipulation of a Computer System.

This exclusion applies to all forms and endorsements including, but not limited to, forms and endorsements that cover damage to autos, cargo, buildings, personal property, business income, extra expense or action of civil authority.

The terms of this exclusion, or the inapplicability of this exclusion to a particular loss, do not serve to create coverage for any loss that would otherwise not be covered under this policy.

This endorsement supersedes and, if in conflict with any other wording in the Policy or any endorsement thereto having a bearing on Cyber Loss, Data or Data Processing Media, replaces that wording.

TRAILER INTERCHANGE ENDORSEMENT

Policy No:

Effective Date:

Named Insured:

Premium \$	Rate %
On Unit(s):	Any One Trailer Limit: \$
	Any One Loss Limit: \$
	Deductible: \$

This endorsement is for use with:

CUS CA 202 Auto Physical Damage Coverage Form
CUS CA 302 Motor Truck Cargo Coverage Form

If a limit of insurance for non-owned **trailers** is shown on the schedule made a part of the policy issued to **you** we will pay for **loss** by a Covered Cause of **Loss** to **trailer** that:

- a. **You** do not own, but that is in your care, custody and control;
- b. Is attached to a tractor scheduled on the policy issued to **you** at the time of **loss**; and
- c. **You** have agreed to be responsible for while in your possession under a written interchange agreement.

This endorsement does not provide coverage for any **trailer** that is in **your** care, custody and control being transported as cargo, whether attached to a tractor scheduled on the policy or not.

Our liability under this endorsement is subject to all of the provisions, exclusions, definitions, terms and conditions contained in the policy, and will further exclude loss of or damage to any **trailer** occurring while the **trailer** is not attached to a **covered vehicle**. **We** will pay the actual cash value of the damaged **trailer**, or the limit of liability shown above under Any One Trailer, whichever is less.

Our total limit of liability under this endorsement will not exceed the limit shown above under Any One Loss, but **our** overall liability with respect to a loss involving more than one coverage of this policy will not exceed the loss limit shown in **ITEM FOUR – OCCURRENCE LIMIT** Number 1 of the Declarations.

The amount shown above under Deductible will be deducted separately from each claim of damage to any one **trailer**.

TRAILER INTERCHANGE ENDORSEMENT
CUS CA 702 1023

In the event of **loss** to a **trailer** insured under this endorsement, **we** will have the right to adjust the claim with the owner(s) of the **trailer** and the settlement of the **loss** with the owner(s) will satisfy any claim of **yours** for damage to that **trailer**.

All other policy terms and conditions remain unchanged.

MOTOR TRUCK CARGO COVERAGE FORM

Various provisions in this Policy restrict coverage. Read the entire Policy carefully to determine rights, duties and what is and is not covered.

Throughout this Policy, the words **you** and **your** refer to the Named Insured shown in the Declarations. The words **we**, **us** and **our** refer to the Company providing this insurance.

Other words and phrases that appear in boldface type have special meaning. Refer to Section **F**. Definitions.

A. Coverage

We will pay those sums that **you** become legally obligated to pay for loss to Covered Property caused by a Covered Cause of Loss.

1. Covered Property

Covered Property, as used in this Coverage Form, means property of others that **you** have accepted for transportation as a common or contract motor carrier under **your** tariff and bill of lading or shipping receipt issued by **you**.

We only cover property while it is in **due course of transit**, in **your** care, custody, and control, and in or on a Covered Vehicle.

2. Property Not Covered

Covered Property does not include:

- a) Accounts, bills, currency, deeds, evidences of debt, money, notes, securities, letters of credit, or railroad or other tickets;
- b) Bullion, gold or other precious metals, jewelry, watches, precious or semiprecious stones;
- c) **Electronics**;
- d) **Garments**, furs or **garments** trimmed with fur;
- e) Coins or stamps;
- f) Passport or other identification or citizenship documentation;
- g) Live animals;

- h) The vehicle(s) carrying the property including all equipment of the vehicle including, containers, tie downs and tarpaulins;
- i) Intermodal containers, unless included in the value of the shipment;
- j) Property while waterborne;
 - (1) We cover property while aboard vessels on inland waterways when the waterborne transportation is incidental to the land portion of the journey.
- k) Works of art including but not limited to paintings, statuary, manuscripts and mechanical drawings;
- l) Tobacco, cigars, cigarettes or **cannabis** products and by-products;
- m) Alcohol, beer or wine;
- n) **Pharmaceuticals**;
- o) **Automobiles**, mobile homes, all-terrain vehicles, boats, or jet skis and other personal watercraft;
- p) Oversize or Overweight Loads;
- q) Mobile Cranes or similar;
- r) Gasoline & related petroleum products including but not limited to LPG or Propane;
- s) Oil and Drilling Byproducts including contaminated water or soil, frac sand, and other byproducts;
- t) Refuge, Garbage, Household Waste;
- u) Non-ferrous metals;
- v) Bulk or bagged nuts;
- w) Cotton within seventy-two 72 hours after ginning;
- x) Seafood unless canned;
- y) **Contraband**, or property in the course of illegal transportation or trade;
- z) Arms, Ammunition, Dynamite, Nitroglycerine, and Other Explosive Materials;
- aa) Property you haul for others without a charge, gratuitously or as an accommodation;
- bb) Property while in an **unattended** Covered Vehicle.

This does not apply if:

- (1) The **covered vehicle** is
 - i. Garaged in a building, or
 - ii. Parked in a fully enclosed yard which is securely closed and locked, or
 - iii. Under constant surveillance, or
 - iv. On a guarded lot;

AND

- (2) The **covered vehicle** has all openings closed and securely locked and the keys removed, to the extent permitted by local regulations.

cc. Household goods, personal effects or other personal or business property when forming part of a residential or office relocation; or

dd. Property owned by **you** or **your** employees.

3. Covered Causes Of Loss

Covered Causes of Loss means Direct Physical Loss Or Damage to Covered Property for which **you** are liable except those causes of loss listed in the Exclusions.

B. Exclusions

This insurance does not apply to:

- 1. **Your** liability for loss or damage caused directly or indirectly by any of the following. Such loss or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss or damage.

- a. **Governmental Action**

Seizure or destruction of property by order of governmental authority.

But **we** will pay for loss or damage caused by or resulting from acts of destruction ordered by governmental authority and taken at the time of a fire to prevent its spread if the fire would be covered under this Coverage Form.

- b. **Nuclear Hazard**

Nuclear reaction or radiation, or radioactive contamination, however caused.

But if nuclear reaction or radiation, or radioactive contamination results in fire, **we** will pay for the direct loss or damage caused by that fire if the fire would be covered under this Coverage Form.

- c. **War And Military Action**

- (1) War, including undeclared or civil war;
 - (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
 - (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

Exclusions **B.1.a.** through **B.1.c.** apply whether or not the loss event results in widespread damage or affects a substantial area.

- 2. **Your** liability for loss or damage caused by or resulting from any of the following:

- a. Improper packing or stowage, or rough handling.

- b. Delay, loss of use, loss of market, clean up costs or any other consequential loss.
- c. Spoilage, freezing, or change in temperature.
- d. But **we** will pay for such loss caused directly by fire, lightning, explosion, windstorm, aircraft, theft or attempted theft, or by **accident** to the vehicle carrying the property if these causes of loss would be covered under this Coverage Form, or to the extent coverage is afforded under the Refrigeration Breakdown Optional Coverage.
- e. Unexplained loss, mysterious disappearance, or loss disclosed upon taking inventory.
- f. Dishonest or criminal act (including theft) committed by:
 - (1) **You**, any of **your** partners, employees (including temporary employees and leased workers), officers, directors, trustees, or authorized representatives;
 - (2) A manager or a member if **you** are a limited liability company;
 - (3) Anyone else with an interest in the property, or their employees (including temporary employees and leased workers) or authorized representatives; or
 - (4) Any person to whom **you** entrust the property for any purpose, whether acting alone or in collusion with any other party.

Whether acting alone or in collusion with each other or with any other party.

This exclusion applies whether or not an act occurs during **your** normal hours of operation.

- g. Voluntary parting with any property by **you** or anyone entrusted with the property if induced to do so by any fraudulent scheme, trick, device or false pretense. This includes, but is not limited to, a third party's use of fraudulent documents, forged freight bills, interchange receipts, release orders or other unauthorized forms or documents.
- h. Unauthorized instructions to transfer property to any person or to any place.
- i. Neglect of an insured to use all reasonable means to save and preserve property from further damage at and after the time of loss.
 - (1) Rejection due to a tampered, broken or missing trailer seal where there is no physical loss or damage to Covered Property.
- j. Loss or damage caused by strikers, locked-out workers or persons taking part in labor disturbances, riots or civil commotions.
- k. Wetness or dampness when Covered Property is in or on an open topped, flat bed or curtain sided trailer or truck unless:
 - (1) The Covered Property is completely and securely covered with a waterproof tarpaulin; and
 - (2) The tarpaulin first sustains damage by a Covered Cause of Loss
- l. **I. Loss** resulting from or reasonably attributed to the insolvency, bankruptcy or financial failure of the insured.

- m. Loss arising out of or in any connected with, directly or indirectly, the use or operation of any computer, computer system, computer software, program or process or any electric system. But **we** will pay for such loss caused directly by fire, lightning or explosion or by **accident** to the vehicle carrying the property if these causes of loss would be covered under this Coverage Form.
 - n. Loss where the driver:
 - (1) Is tested for drug or alcohol-related impairment at the time of loss and the test results are in excess of the statutory limit under State Law;
 - (2) Is charged by a police officer or other government authority with driving while intoxicated, impaired or under the influence of:
 - i. Alcohol
 - ii. Illegal Drugs including but not limited to:
 - (a) Non-prescription drugs;
 - (b) Prescription drugs with a driving restriction;
 - (c) Prescription drugs not prescribed to the operator.
 - (3) Refuses to be tested for suspicion of drug or alcohol-related impairment at the time of loss; or
 - (4) Does not have, at the time of loss, a commercial driver's license with the proper endorsements to operate the **covered vehicle** involved in the loss.
3. **Your** liability for loss or damage caused by or resulting from any of the following. But if loss or damage by a Covered Cause of Loss results, **we** will pay for the loss or damage caused by that Covered Cause of Loss.
- a. Any quality in the property that causes it to damage or destroy itself.
 - b. Gradual deterioration, corrosion, rust.
 - c. Dampness, extremes of temperature.
 - d. Contamination.
 - e. Insects, vermin or rodents.

C. Limits of Insurance

The most **we** will pay for loss or damage in any one occurrence involving one **covered vehicle** is the COVERED VEHICLE LIMIT. The most **we** will pay for loss or damage in any one occurrence involving two or more **covered vehicles** is the LOSS LIMIT. A tractor and trailer, while connected to one another, will be considered a single **covered vehicle**, subject to a single COVERED VEHICLE LIMIT.

D. Deductible

We will not pay for loss or damage in any one occurrence until the amount of the adjusted loss or damage before applying the applicable limit exceeds the Deductible shown in the Declarations. **We** will then pay the amount of the adjusted loss or damage in excess of the Deductible, up to the applicable limit.

E. Duties In The Event of Loss

1. **You** must see that the following are done in the event of loss or damage to Covered Property:
 - a. Give **us** prompt notice of loss or damage not exceeding fifteen (15) calendar days after the date that **you** received notification of the loss or damage. Include a description of the property involved such notice.
 - b. As soon as possible, give **us** a description of how, when and where the loss or damage occurred.
 - c. Notify police if a law may have been broken including, but not limited to, claims of theft, larceny, robbery, pilferage or vandalism.
 - d. Take all reasonable steps to protect the Covered Property from further damage and keep a record of **your** expenses necessary to protect Covered Property for consideration in the settlement of the claim. This will not increase the applicable Limit. However, **we** will not pay for any subsequent loss or damage resulting from a cause of loss that is not a Covered Cause of Loss.
 - e. As often as may be reasonable required, permit **us** to inspect the property proving the loss or damage and examine **your** books and records. Also permit **us** to take samples of damaged and undamaged property for inspection, testing and analysis, and permit **us** to make copies of **your** books and records.
 - f. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the loss or claim.
 - g. Cooperate with **us** in the investigation or settlement of the claim.
2. **We** may examine the insured under oath, while not in the presence of any other insured and at such times as may be reasonably required, about any matter relating to this insurance or the claim, including an insured's books and records. In the event of an examination, an insured's answers must be signed.

Unless authorized by **us** in writing, the insured will not, except at its own cost, offer or pay any reward for recovery of Covered Property.

F. Conditions

1. Coverage Territory

We cover property only while located within the United States of America (including its territories and possessions).

2. Bankruptcy Of An Insured

Bankruptcy or insolvency of an insured does not relieve "us" of "our" obligations under this coverage.

3. Coinsurance

We will not pay the full amount of any loss if the value of Covered Property at the time of the loss exceeds the applicable Limit. Instead, **we** will determine the most **we** will pay using the following steps:

- a. Divide the applicable Limit by the load value of the Covered Property;
- b. Multiple the total amount of loss, prior to application of any deductible, by the figure determined in Step a.; and
- c. Subtract the deductible from the figure determined in Step b.

We will pay the amount determined in Step c. or the applicable limit, whichever is less. For the remainder, **you** will have to absorb the loss yourself.

Example #1

When:	The load value of the property is:	\$200,000
	The limit of insurance is:	\$100,000
	The deductible is:	\$1,000
	The amount of loss is:	\$30,000
Step a.	$\$100,000 \div \$200,000 = .50$	
Step b.	$\$30,000 \times .50 = \$15,000$	
Step c.	$\$15,000 - \$1,000 = \$14,000$	

We will pay no more than \$14,000. The remaining \$16,000 is not covered.

Example #2

When:	The load value of the property is:	\$200,000
	The limit of insurance is:	\$100,000
	The deductible is:	\$1,000
	The amount of loss is:	\$200,000
Step a.	$\$100,000 \div \$200,000 = .50$	

Step **b.** $\$200,000 \times .50 = \$100,000$

Step **c.** $\$100,000 - \$1,000 = \$99,000$

We will pay no more than \$99,000. The remaining \$101,000 is not covered.

4. Transfer of Rights of Recovery Against Others to Us

- 5.If any person or organization to or for whom **we** make payment under this Policy has rights to recover damages from another, those rights are transferred to **us** to the extent of **our** payment. That person or organization must do everything necessary to secure **our** rights and must do nothing after loss to impair them. In addition, **you** will execute and deliver documents or take other actions as necessary to secure those rights and provide reasonable assistance in the prosecution of all actions to recover the loss including, but not limited to, assisting with preparation of documents and offering testimony before or during trial.
- 6.Any act or agreement by **you**, whether prior to or after the **accident**, that causes the loss or release of any right to recover will invalidate any claim under this Policy. **Our** right to retain or recover premium will not be affected.

7.Subrogation

- 8.In the event of any recovery from others, after deduction of expenses **we** incurred to collect that recovery, **we** will share the remaining recovery in the same proportion that the loss was shared.

9. Right to Adjust With Owner

10. **We** will have the right to adjust the claim for loss or damage with the owner(s) of the property and the settlement of the loss or damage with the owner(s) will satisfy any claim of the insured for damage to that property.

11. Right to Defend

12. If suit is filed to enforce a claim against **you** with respect to a loss to Covered Property for which coverage is afforded by the Policy, **we** may, at **our** discretion, defend the suit at **our** expense. If **we** exercise the right to defend on **your** behalf, **you** agree to cooperate in the defense of the suit, allow **us** to select counsel and manage the defense of the suit. **We** will have no duty to defend any action whether or not the subject matter includes a claim submitted under this Policy.

13. Loss Clause

The limit of insurance will not be reduced by the payment of any claim, except in the event of payment of a claim for total loss of a trailer pursuant to the Non-Owned Trailer Endorsement CUS CA 700, Trailer Interchange Endorsement CUS CA 702, and/or Trailer Interchange Endorsement - UIIA CUS CA 752. If claim is paid for total loss of a trailer, the premium for that trailer will be deemed fully earned.

14. Volunteer Payments

You must not, except at **your** own expense, voluntarily make any payments, assume any obligations, pay or offer any rewards, or incur any other expenses except as respects protecting property from further damage.

15. No Benefit to Bailee

No person or organization, other than **you**, having custody of the Covered Property, will benefit from this insurance

16. Policy Period

We pay for loss that occurs during the policy period.

17. Assignment

Your rights and duties under this Policy may not be transferred without **our** written consent. This Policy will be deemed void if assigned or transferred without such written consent.

18. Conflicting Statutory Provisions

19. If any condition, provision or term of this Policy conflicts with any statutory provision in the jurisdiction where the claim is made, the statutory provision will be substituted for that condition, provision or term.

20. Reimbursement to Us

You will reimburse **us** within ten (10) calendar days those sums that **we** paid that **we** would not have been required to pay but for the attachment to this Policy of any federal or state endorsement or any other endorsement or certificate of insurance. It is further agreed that **we** will have the right to deduct from any loss payable under this Policy any sums **you** owe including, but not limited to premiums, deductibles paid by us and any reimbursement due under this condition.

21. Concealment, Misrepresentation or Fraud

This Policy is void in the case of fraud by **you** as it relates to this Policy at any time. It is also void if **you** or any other insured, at any time conceal or misrepresent a material fact concerning this Policy, the Covered Property, **your** interest in the Covered Property or a claim under this Policy.

22. Abandonment

You may not abandon property to **us**.

23. Valuation

In the event of loss, the value of property will be determined as of the time of loss or damage. The valuation of property covered by this Policy will be the least of the following amounts:

- a. The cost of reasonably restoring that property to its condition immediately before loss;
- b. The cost of replacing that property with substantially identical property;
- c. The value, if any, stated in the bill of lading or shipping receipt; or
- d. The limitation stated in the tariff.

24. Pair, Sets or Parts

- a. Pair or Set

In case of loss to any part of a pair or set, we will pay no more than the least of the following:

- (1) The cost to repair or replace any part to restore the pair or set to its value before the loss, or
- (2) Pay the difference between the value of the pair or set before and after the loss

b. Parts

In case of loss to any part of Covered Property consisting of several parts when complete, we will only pay for the value of the lost or damaged part.

25. Legal Action Against Us

You may not bring a legal action against us arising from a claim under this coverage form unless:

- a. There has been full compliance with all the terms of this coverage form; and
- b. The action is brought within two (2) years after **you** first have knowledge of the loss.

If the state law applicable to this coverage requires a different time period within which legal action may be brought, this provision is amended to conform to such law.

26. Cancellation

- a. **You** may cancel this Policy by mailing or delivering to us advance written notice of cancellation.
- b. **We** may cancel this Policy by mailing to **you** written notice of cancellation at least 30 days before the effective date of cancellation.
- c. Notice of cancellation will state the effective date of cancellation. The Policy period will end on that date.
- d. If notice is mailed, proof of mailing will be sufficient proof of notice.
- e. If this Policy is cancelled, **we** will send the Named Insured any premium refund due. If **we** cancel, the refund will be pro rata. If **you** cancel, the refund may be less than pro rata. Premium refunds are subject to minimum earned premiums.
- f. If **you** cancel and this Policy has been in effect for 12 months or less, the standard short rate table for annual policies will be applied to the full annual premium for a Policy written for a term of one year.
- g. If **you** cancel and this Policy has been in effect for more than 12 months:
 - (1) Determine the full annual premium for a Policy written for a term of one year;
 - (2) Deduct the full annual premium from the total Policy period and, on the remainder, cancel the pro rata earned premium based on the ratio of the length of time beyond one year the Policy has been in force to the length of time beyond one year for which the Policy was originally written;
 - (3) Add the premium amount from paragraphs (1) and (2) to obtain the earned premium during the full period the Policy has been in force.

27. Other Insurance

If **you** or any other interested party have other insurance covering the same loss or damage that would apply in absence of this Policy, **we** will pay only for the amount of covered loss or damage in excess of the amount due from that other insurance, whether **you** can collect on it or not.

28. Premium Audit and Reporting Clause

- a. Premium shown in the Declarations is a deposit premium only. At the close of each audit period, we will compute the earned premium for that period and send notice to **you**.
- b. **You** agree to keep an accurate record of the gross receipts, whether or not collected or paid, for **your** trucking business during the term of the Policy and report to **us** or **our** authorized agent, not later than the 20th day after the anniversary date of the Policy, the full amount of gross receipts for that annual period or such time as is within the Policy period.
- c. For purposes of this insurance, gross receipts will mean the actual charges for transportation of lawful goods and merchandise from its original location to its destination plus charges for other services including any payments to lease carriers, contractors or owner operations.
- d. **You** agree that **we** will be permitted to examine **your** books and records related to **your** trucking business at all reasonable times during the life of this Policy and for 36 months after expiration or termination of the Policy. **Your** furnishing of any statement of gross receipts or payment of premium does not constitute a waiver of **our** rights to examine **your** books and records or seek payment for any additional premium which may have been earned.

G. Definitions**1. Accident** means:

- a. Upset or overturn of the transporting vehicle;
- b. Flood meaning rise of streams or navigable waters;
- c. Stranding, collision, burning, grounding or sinking of a ferry while the **covered vehicle** is on board; or
- d. The violent and accidental contact of the transporting vehicle with another vehicle or object, but not including contact with:
 - (1) The roadbed or curbing;
 - (2) Rails or ties of street, steam or electric railroad; or
 - (3) Any stationary object while backing for loading or unloading purposes.

2. Automobile means:

- a. A land motor vehicle or trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or
- b. Any other land vehicle that is subject to compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged.

3. Covered Vehicle means:

- a. A self-propelled commercial vehicle designed to carry cargo, which is licensed for use on public roads, and specifically described in the Declarations.
- b. Trailers and semi-trailers, dollies or auxiliary wheels combined, or any combination of them, or any unidentified trailer, but only:
 - (1) While singularly attached to a **Covered Vehicle**; or
 - (2) While temporarily detached for a period not exceeding 72 consecutive hours (not including Sundays and holidays) from a covered vehicle, and
 - i. while garaged in a building or parked in a fully enclosed yard which is securely closed and locked, or the trailer or semi-trailer is under constant surveillance, or on a guarded lot and,
 - ii. trailer or semi-trailer has all the openings closed and securely locked with keys removed.

4. Due Course of Transit means:

The period which begins with the actual movement of the **Covered Property** including loading from the point of shipment bound for a specific destination or while awaiting such movement. It remains in **Due**

Course of Transit during ordinary, reasonable and necessary stops, interruptions, delays or transfers incidental to the route and method of shipment, including rest periods taken by the driver(s) or messenger(s). **Due Course of Transit** ends upon acceptance of the **Covered Property** by or on behalf of the consignee at destination including unloading, but, shall not extend beyond the period of time for which you are liable.

5. Electronics means:

Consumer and commercial electrical appliances and instruments, including but not limited to:

- a. Audio recording and playback devices
- b. Video recording and playback devices whether disc based or otherwise
- c. Cellular phones
- d. Computer consoles whether portable or not
- e. Computers
- f. Tablets
- g. Software
- h. Computer components including but not limited to
 - (1) Chips and microchips;
 - (2) Printed circuit boards and their components;
 - (3) Modems;
 - (4) Monitors
- i. Cameras
- j. Printers
- k. Photocopiers
- l. Facsimile machines
- m. Stereos
- n. Digital audio players whether portable or not

- o. Headphones

Heavy Electrical items such as switchgear, turbines, generators and the like will not be considered **electronics**.

6. Garments means:

All items of clothing including but not limited to:

- a. Innerwear
- b. Outerwear
- c. Footwear
- d. Shoes
- e. Boots
- f. Gloves
- g. Hats

7. Marijuana means:

Marijuana plants and their derivatives regardless of their state including but not limited to:

- (1) Finished **marijuana** stock and products containing **marijuana** and/or its derivatives.
- (2) Seed, meaning an embryonic plant enclosed in a protective outer covering called the seed coat.
- (3) Seedling, meaning a young living **marijuana** plant no more than 4 inches in height or length.
- (4) Vegetative plant, meaning a young living plant that is not a flowering plant
- (5) Flowering plant, meaning a living plant that has started to flower but is not yet harvested.
- (6) Harvested plant material, means mature **marijuana** plant material no longer in the growing medium.

8. Pharmaceuticals means:

A compound manufactured for use as a medicinal drug used to diagnose, cure, treat and/or prevent disease including but not limited to medicinal products, medicines medications and/or medicaments.

9. Unattended means:

A **Covered Vehicle** which has been left without a responsible person whose duty is to drive, guard or attend the **Covered Vehicle** being either on, in or within ten yards of the **Covered Vehicle**.

10. We, Us and Our means:

The company providing this insurance.

11. You and Your means

The Named Insured shown in the Declarations.

H. Optional Coverages

Optional Coverages are included in this policy only when the Coverages are selected on the Declarations with a Limit(s) of Insurance and Deductible(s) stated on the Optional Coverages Schedule in the Declarations. In addition to those set forth below, these Optional Coverages are subject to all policy Exclusions, terms and conditions.

1. Refrigeration Breakdown Coverage

- a. **We** will pay for loss or damage to Covered Property caused by freezing, spoilage or change in temperature, when the loss or damage is caused by mechanical failure of or breakdown of the automatic temperature control unit.
- b. Loss or damage caused by the following are excluded under this Optional Coverage:
 - (1) Failure to maintain an adequate fuel supply
 - (2) Failure to maintain crankcase oil level within the manufacturer's specifications.
 - (3) Failure to maintain an adequate level of refrigerant per the manufacturer's specifications.
 - (4) Failure due to computer or electronic process malfunction as stipulated in Exclusion **m.** of this Policy.
 - (5) Losses caused by wear and tear or deterioration or a lack of or improper maintenance of any refrigeration unit component.

c. As a condition to this Optional Coverage, **You** warrant that:

- (1) The refrigeration or heating units will be maintained in accordance with the manufacturer's instructions in good operating condition and will be inspected at least once a month by **you** or **your** authorized service representative(s), and
- (2) Maintenance, service and inspection records will be kept, and available for inspection by **us** or **our** authorized representative at all times during **your** normal business hours.

Failure to comply with these warranties voids the coverage under the Refrigeration Breakdown Coverage

- d. **Our** liability for loss or damage under this Optional Coverage is limited to the amount shown under **Coverage Number 1** on the **OPTIONAL COVERAGES SCHEDULE**. The deductible applicable to losses recoverable under this Optional Coverage is limited to the amount shown for **Coverage Number 1** in the **OPTIONAL COVERAGES SCHEDULE**. However, if the loss involves an automatic temperature control unit exceeding ten model years of age, the deductible will be the amount shown in the **OPTIONAL COVERAGES SCHEDULE** or \$3,500, whichever is greater.

2. Riggers Coverage

- a. We will pay for loss or damage to Covered Property while in your custody and directly resulting from the accidental dropping or slipping of the Covered Property from slings, hoists or other tackle or rigging while being loaded, unloaded, hoisted or lowered by you.
- b. As a condition to this Coverage, you warrant that competent riggers and adequate transportation and loading and unloading equipment will be used and that the weight will not exceed the registered or manufacturer's guaranteed lifting or weight capacity of any equipment, including ropes, cables, block and tackle.

Failure to comply with this warranty voids the coverage under the Riggers Coverage.

- c. Our liability for loss or damage under this Optional Coverage is limited to the amount shown under Coverage Number 2 on the **OPTIONAL COVERAGES SCHEDULE**. The deductible applicable to losses recoverable under this Optional Coverage are shown for Coverage Number 1 in the **OPTIONAL COVERAGES SCHEDULE**.

4. Unattended Covered Vehicle Coverage

- a. **We** will pay for **your** legal liability for loss due to theft of Covered Property from an **unattended Covered Vehicle**, while in **due course of transit**, subject to the **Covered Vehicle** having all its openings closed, securely locked and all keys removed.
- b. **Our** liability for loss or damage involving any one **Covered Vehicle** is limited to the amount shown under **Coverage Number 4** on the **OPTIONAL COVERAGES SCHEDULE**.

- c. Coverage does not apply for loss or damage to Covered Property in or on trailers or semi-trailers which are detached from power units, unless such trailers are:

- (1) Garaged in a building, or
- (2) Parked in a fully enclosed yard which is securely closed and locked, or
- (3) Under constant surveillance, or
- (4) On a guarded lot,

AND

- (5) The trailer or semi-trailer has all the openings closed and securely locked with keys removed and the period that the trailer or semi-trailer is detached from the power unit does not exceed 72 consecutive hours (not including Sundays and holidays) from the time of detachment from the **Covered Vehicle**.

5. Earned Freight Coverage

- a. **We** will pay for loss of earned freight charges incurred by **you** at the time of loss recoverable under this Policy. This endorsement does not extend this Policy to cover unearned freight charges, or loss of earned freight charges where there is not a loss otherwise recoverable under this Policy.
- b. **Our** liability under this Optional Coverage is limited the amount shown under **Coverage Number 5** on the **OPTIONAL COVERAGES SCHEDULE**.

5. Debris Removal Coverage

- a. **We** will pay for the necessary costs to remove debris of Covered Property in connection with an **accident** covered under this Policy.
- b. **Our** liability under this Optional Coverage is limited the amount shown under **Coverage Number 6** on the **OPTIONAL COVERAGES**. This is subject to, and not in addition to, the coverage limits for any one **Covered Vehicle** and any one occurrence, set forth in the declarations. Regardless of the application of this Optional Coverage, **our** maximum liability under this Policy for any one **Covered Vehicle** or any one occurrence will be the amounts shown in sections A and B of the Schedule forming page 1 of this form.
- c. This Optional Coverage does not cover any costs related to environmental clean-up or hazardous material clean-up or any related expenses.

6. L.T.L. Coverage (72 Hour Off Covered Vehicle Cover)

- a. **We** will cover Covered Property while it is unloaded and held pending transfer at the terminals named in section 7 on the **OPTIONAL C SCHEDULE**, for a period not exceeding 72 hours (not including Sundays and holidays) after unloading.
- b. **Our** liability under this Optional Coverage is limited the amount shown under **Coverage Number 7** on the **OPTIONAL V SCHEDULE**, but will still be subject to the applicable limit stated in section B on the Schedule forming page 1 of this form.

7. In Full Premium Coverage

Our liability will be limited to Covered Property while in and/or on a **Covered Vehicle**, including loading and unloading, subject to the applicable limit outlined on the Schedule forming page 1 of this Policy. The premium specified on the schedule will be non-adjustable and subject only to the cancellation provisions of this Policy specified in condition 13.

COMPLAINTS NOTICE

The insurer aims to provide the highest quality of service. However, if you have a complaint about this insurance for any reason, please contact your agent or broker.

Alternatively, the insured can write to:

Email: compliance@coverwhale.com

OR

Physical Address: 180 Maiden Ln Suite 802 New York, NY 10038

Ultimately, if the Insured remains dissatisfied it may refer complaints to the department which regulates insurance in the state.